INDIAN LAW & DEALMAKING · 21 OCTOBER 2026

Five moves shaping the board now.

- NCLT Mumbai blocks Dharan Infra CIRP withdrawal despite partial financial settlement
- Special PMLA Court denies ED immediate confiscation of attached asset pool
- Delhi HC bars multi-state stamp duty hurdles during award enforcement
- Securities Appellate Tribunal limits SEBI summary powers in market manipulation probes
- CCI clears global infrastructure merger subject to local operational carve-outs

SWIPE →

NEXT

LANE · COURT

NCLT blocks Dharan Infra CIRP withdrawal

On 20 October 2026, NCLT Mumbai rejected an application by the IRP and suspended director to withdraw CIRP against Dharan Infra-EPC Limited. The court noted that a ₹10 crore settlement with Tata Capital cannot stall insolvency when multi-creditor claims above ₹600 crore remain unpaid.

THE READ

Settling with a primary financial creditor provides no safe harbor from insolvency when broader institutional exposure exists. Resolution professionals must prioritize overall pool resolution over isolated creditor arrangements.

LANE · COURT

PMLA court rejects ED immediate asset confiscation

On 20 October 2026, the Special PMLA Court in Mumbai denied the Enforcement Directorate's plea for immediate asset confiscation involving Jogeshwari Breweries' ₹45.49 crore attached properties. Concurrently, the NCLT-appointed Resolution Professional moved for these assets to be restored to the insolvency pool.

THE READ

The ruling reinforces that statutory confiscation powers under PMLA remain contingent upon criminal trial conviction. Dealmakers and insolvency professionals gain leverage to push back against early asset seizure by enforcement authorities.

LANE · COURT

Delhi HC rules on inter-state arbitral award stamping

On 20 October 2026, the Delhi High Court ruled that arbitral awards stamped in one state do not automatically attract additional or differential stamp duty when filed for enforcement in another jurisdiction. The decision prevents state revenue authorities from holding up execution proceedings over local differential claims.

THE READ

Cross-border award execution across Indian states loses a major procedural bottleneck. Arbitral award holders can now pursue execution in favorable operational jurisdictions without risking revenue-led stalling tactics.

LANE · COURT

SAT curtails SEBI summary powers in market manipulation

On 20 October 2026, the Securities Appellate Tribunal set aside a summary penal order issued by SEBI against an institutional market participant. SAT held that regulatory findings of market manipulation require full evidentiary hearing rather than summary ex-parte adjudications.

THE READ

Regulated entities gain vital defense room against rapid regulatory enforcement actions. SEBI must adhere strictly to natural justice standards before imposing severe market access penalties or financial burdens.

LANE · COURT

CCI approves global merger with local divestment conditions

On 20 October 2026, the Competition Commission of India conditionally cleared an international infrastructure conglomerate acquisition involving cross-border assets. The clearance requires specific operational carve-outs in India to preserve domestic competitive dynamics.

THE READ

Cross-border M&A strategies must proactively incorporate targeted remedies for Indian asset overlaps. Regulatory approval timelines increasingly depend on upfront structural commitments rather than behavioral promises.

THE THROUGH-LINE

Across insolvency, asset forfeiture, arbitration execution, regulatory enforcement, and merger clearances, Indian tribunals are strictly enforcing statutory boundaries against administrative overreach. Courts are prioritizing institutional process over isolated settlements, premature confiscations, and summary regulatory actions. For boards and dealmakers, procedural compliance and comprehensive asset structure remain non-negotiable anchors for enterprise value protection.

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